



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

JUL 20 2001

DOT-E 11675
(SECOND REVISION)

EXPIRATION DATE: March 31, 2002

(FOR RENEWAL, SEE 49 CFR § 107.105)

1. GRANTEE: Union Pacific Railroad Company
Omaha, Nebraska
2. PURPOSE AND LIMITATION:
 - a. This emergency exemption authorizes the transportation in commerce of a specially designed rail car which has been modified to carry a lighted Olympic Flame system. Fuel for the flame is propane, a Division 2.1 gas, contained in eight (8) non-DOT specification tanks. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Part 171 through 199, except as specified herein.
5. BASIS: This emergency exemption is based on the application of Union Pacific Railroad Company dated June 29, 2001, submitted in accordance with § 107.117 and a determination that it is necessary to preclude serious economic loss and supplemental letter dated July 10, 2001.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Propane	2.1	UN1978	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packagings prescribed are eight (8) non-DOT specification 266 gallon capacity tanks constructed to ASME standards that have been fitted into a specially modified rail flat car for the purpose of providing propane fuel to the Olympic Flame cauldron mounted on the rail car.

b. The rail car must conform to the applicable requirements of 49 CFR Parts 215, 231 and 232.

8. SPECIAL PROVISIONS:

a. No person may ride on the Olympic Torch Car while it is in motion and the flame is lit.

b. The car with the flame system must be continuously monitored by personnel in an adjacent coach car whenever the flame is lit.

c. The emergency response information required by 49 CFR Subpart G and a current copy of this exemption must be carried in the coach car.

d. Persons who receive the rail car covered by this exemption may transport it provided that no modifications or changes are made to the car, all terms of this exemption are complied with, and a copy of this exemption is maintained by each rail carrier who transports the car.

9. MODES OF TRANSPORTATION AUTHORIZED: Rail freight.10. MODAL REQUIREMENTS: The Federal Railroad Administration is to be notified if any unusual incident occurs during the movement by contacting the:

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Federal Railroad Administration
Office of Safety Assurance and Compliance, RRS-12
Hazardous Materials Division
1120 Vermont, N.W.
Mail Stop 25
Washington, D.C. 20590
(202) 493-6248 or 493-6229

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving unintentional loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

JUL 20 2001

(DATE)

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Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, S.W., Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

PO: sln